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**GOVERNMENT OF THE PUNJAB
LAW AND PARLIAMENTARY AFFAIRS DEPARTMENT**

**NOTIFICATION
(92 of 2017)**

4 July 2017

The following Notification No.SOR(LG)38-17/2016, dated 30.06.2017 issued under section 144 of the Punjab Local Government Act 2013 (XVIII of 2013) for the Punjab Local Governments (Fee for Licensing of Professions and Vocations) Rules 2017 is published for general information:

DR SYED ABUL HASSAN NAJMEE

Secretary

Government of the Punjab
Law and Parliamentary Affairs
Department

**GOVERNMENT OF THE PUNJAB
LOCAL GOVERNMENT AND COMMUNITY DEVELOPMENT
DEPARTMENT**

30th June 2017

NOTIFICATION

No.SOR(LG)38-17/2016. In exercise of the powers conferred under section 144 of the Punjab Local Government Act 2013 (*XVIII of 2013*) and after previous publication, Governor of the Punjab is pleased to make the following rules:

1. Short title and commencement.- (1) These rules may be cited as the Punjab Local Governments (Fee for Licensing of Professions and Vocations) Rules 2017.

(2) They shall come into force at once.

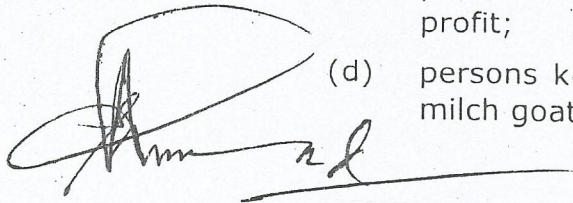
2. Definitions.- (1) In these rules:

- (a) "Act" means the Punjab Local Government Act 2013 (*XVIII of 2013*);
- (b) "House" means an elected body of a local government as defined in section 2(v) of the Act;
- (c) "local government" means a Union Council, a Municipal Committee, a Municipal Corporation, the Metropolitan Corporation or a District Council;
- (d) "professions and vocations" include trades for which licence is required under the Act; and
- (e) "rules" means the Punjab Local Governments (Fee for Licensing of Professions and Vocations) Rules 2017.

(2) An expression used but not defined shall have the same meanings as is assigned to it in the Act.

3. Power to issue licenses or permits.- (1) Subject to sub-rule (2), a local government shall, through a licensing system, regulate the following professions and vocations:

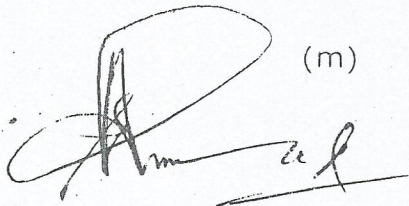
- (a) butchers of mutton and beef;
- (b) vendors of poultry, game or fish;
- (c) persons keeping milch cattle or milch goats for profit;
- (d) persons keeping animals, other than milch cattle or milch goats, for profit;



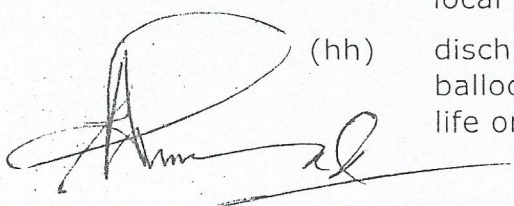
- (e) dairymen, buttermen and makers and vendors of ghee;
- (f) vendors of fruits or vegetable;
- (g) washermen and drycleaners;
- (h) makers and vendors of sweetmeats;
- (i) vendors of wheat, rice and other grains or flour; and
- (j) barbers and keepers of shaving saloons.

(2) The Metropolitan Corporation, a Municipal Corporation, a Municipal Committee and a District Council shall, through a licensing system, also regulate the following professions and vocations:

- (a) manufacturers and vendors of ice or ice-cream;
- (b) vendors of articles of food or drink, for human consumption, which are of perishable nature, except milk, butter, bread, biscuits, cake, fruit, vegetables, aerated or other potable water;
- (c) vendors of water to be used for drinking purposes;
- (d) persons carrying on any trade or occupation which emits offensive or unwholesome smell;
- (e) the business of storing or selling timber, firewood, coal, charcoal and coke, hay straw grass and bamboo, jute, shrub, hemp munj and their products, matches, explosives, petrol, oil and lubricants, paper, ghee and other dangerously inflammable materials;
- (f) sugar refining and sugar refineries;
- (g) preparation of aerated water;
- (h) operating or running bake houses;
- (i) electroplating;
- (j) welding;
- (k) storing, packing, pressing, cleaning, preparing or manufacturing, by any process whatever, blasting powder, ammunition, fireworks, gun powder, sulphur, mercury, gases, gun cotton, saltpeter, nitro-compounds, nitro-mixtures, phosphorus or dynamite;
- (l) cleaning, dying, preparing or manufacturing, by any process whatever, clothes or yarn in indigo and other colours;
- (m) storing, processing, cleaning, crushing, melting, preparing or manufacturing, by any process whatever, or dealing in bones, tallow, offal, fat



- blood, soap, raw hides and skins candles, manure, catgut and oil cloth;
- (n) manufacturers of oil;
 - (o) washing or drying wool or hair;
 - (p) making or manufacturing bricks, 'surkhi', tiles, or earthenware pots clay pipes or other earthenware by any process of baking or burning;
 - (q) burning or grinding of limestone or metal stone or storing of lime for sale;
 - (r) cleaning or grinding of grain or chillies by any kind or class or machinery;
 - (s) keeping animals likely to create nuisance;
 - (t) fell mongering;
 - (u) casting of heavy metals such as iron, lead copper and brass;
 - (v) dealing in poison, acid, chemicals, liquid or otherwise;
 - (w) whole-sale storing, cleaning, pounding and selling of tobacco except the storing of tobacco required for the preparation of *biddis*, cigars or cigarettes;
 - (x) operating or running tin factories;
 - (y)
 - (z) manufacturing of safes, trunks and boxes;
 - (aa) marble cutting and polishing;
 - (bb) glass leveling and polishing;
 - (cc) manufacture of cement and hume pipes;
 - (dd) storing, packing, pressing, cleaning, preparing or manufacturing, by any process whatever, rags, pitch, tar, turpentine, demmar, coconut, fibre, flax, hemp, rosin or spirit;
 - (ee) tanning, pressing or packing hides or skins whether raw or dry;
 - (ff) trade or operation of ferries;
 - (gg) working-on power-looms, rice husking plants, steam whistle, steam trumpet or electric or hand operated sirens beyond hours fixed for their operation by a local government;
 - (hh) discharging fire-arms and letting off fire-works, fire-balloons or detonators, or any game dangerous to life or property;



- (ii) trading, storing and selling used or new tyres likely to cause dengue epidemic; and
- (jj) any other article or trade declared by the Government, by notification, to be dangerous for life, health or property or likely to cause nuisance.

4. Prohibition.- (1) No person shall carry on any profession or vocation, mentioned in rule 3, unless he holds a valid license for the purpose from the concerned local government.

(2) A person engaged in a profession or vocation, mentioned in rule 3, before the commencement of the rules, shall apply for a license to the concerned local government within three months from the commencement of the rules.

(3) The carrying on of any trade, profession or vocation, mentioned in rule 3, without a valid license or without applying for the licence to the concerned local government within the period stipulated in sub-rule (2) shall be deemed to be an offence under the Act.

5. Fee for license.- (1) A local government may charge fee for the grant of a license under these rules.

(2) The fee shall be levied by the local government, after approval by the House as per procedure laid down in the Punjab Local Governments (Taxation) Rules 2017.

6. Procedure and general conditions to grant license.- The local government shall make bye-laws, specifying the procedure and general conditions for the grant, renewal or cancellation of a license under the rules.

7. Cancellation of license.- (1) The local government may, after recording reasons, cancel a licence for reasons of infringement or violation of any provisions of the Act and the rules or bye-laws or for reasons of public safety or security, after serving a notice to the licensee and providing him opportunity of hearing.

(2) The local government after recording reasons may reject an application for the grant of a license or renewal of a license in public interest.

8. Repeal.- The Punjab Local Governments (Fee for Licensing and Permits and Licensing of Professions and Vocations) Rules, 2002 is hereby repealed.

**SECRETARY
GOVERNMENT OF THE PUNJAB
LOCAL GOVERNMENT AND COMMUNITY
DEVELOPMENT DEPARTMENT**